

Slovakia

Antimonopoly Office

The aim of this article is to describe the unsuccessful attempt of the Antimonopoly Office of the Slovak Republic ('the Office,' 'the Authority') to apply a specific machine-reading tool in order to collect data from published decisions of the Office and the lesson learnt from this attempt. In light of recent advances in digitization, web-scraping and web-crawling technologies, the Authority has considered the implementation of advanced tools for machine reading of digital content admissible on the internet in order to analyze and detect suspicious anticompetitive behavior. The Slovak language, as well as the legislation, are specific to Slovak business environment. The Office therefore launched a Proof-of-Concept project to measure the accuracy of such tools. Following the initial analytical phase, the Authority launched a preliminary market consultation to formalize the assignment and procure a contractor for the aforementioned Proof-of-Concept project. This preliminary market consultation resulted in an indicative quotation, on the basis of which the Authority concluded that for smaller authorities such tools are relatively expensive compared to manually carrying out certain 'data scraping' processes.

The Office is the independent central state administration body of the Slovak Republic for the protection of competition and state aid coordination. The Office intervenes in the cases of cartels, the abuse of a dominant position, vertical agreements, it controls mergers, which meet notification criteria moreover, assesses the conduct of state and local administration authorities if they restrict competition by their conduct. It ensures the protection of competition in the area of state aid as well.

All decisions of the Authority have been published on the Authority's website. Due to historical developments and changes in the scope and format of metadata associated with the decisions, the Authority faced the need for massive metadata enrichment and cleansing. The enriched database of the Authority's decisions could be the source of valuable data for various analyses of these decisions. In terms of content, the Authority could thoroughly analyze the fines or other sanctions imposed (e.g., prohibition to participate in public procurement), identify the parties to the administrative proceedings; find out whether specific legal institutes (such as leniency program, settlement) were applied or the anti-competitive practices committed in specific sectors. In addition, the data collected may illustrate some

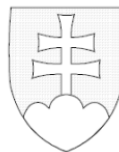
specific technical aspects of decisions or proceedings, such as the duration of the administrative proceeding, the number of pages or words. The outcome of review of the first instance decisions by the Office's appellate council or the Office's decisions by courts, as well as the date of entry into force of such decisions, if they were upheld, may also be valuable information.

The above-stated aspects are readable from the wording and formal mandatory particulars in the text of the decision. Based on the specific textual patterns, it would be possible to identify any occurrence of these phrases in the content of the Authority's decisions in order to extract them into the metadata database relating to each Authority's decision.

According to the initial analytical phase, the Authority divided the decisions into two main groups, namely antitrust decisions and merger control decisions. Antitrust decisions primarily with the purpose of obtaining information on the application of particular legal institutes, namely leniency program and/or settlement, and merger control decisions with the intention of extracting specific information relating to the mergers under consideration.

The assignment of the Proof-of-Concept project included a methodological procedure for extracting these specific wording/textual patterns from the texts of the Authority's decisions.

Depending on the type of decision (antitrust, merger control), several specific data (attributes) were set for the extraction process.



ROZHODNUTIE

Číslo: 2021/KOH/SKO/3/56

Bratislava, 2. novembra 2021

Protimonopolný úrad Slovenskej republiky, odbor koncentrácií, v správnom konaní SK/0048/OK/2021 začatom dňa 18.10.2021 na základe oznámenia koncentrácie podľa § 9 ods. 1 zákona č. 187/2021 Z. z. o ochrane hospodárskej súťaže a o zmene a doplnení niektorých zákonov podnikateľom Jacques Bogart S.A., so sídlom 76/78 avenue des Champs-Élysées 75008 Paríž, Francúzska republika, reg. číslo 304 396 047 R.C.S. Paríž prostredníctvom jeho splnomocneného právneho zástupcu BDO Legal s.r.o., Mostová 2, 811 02 Bratislava, IČO: 51 803 330

Figure I: The number of the decision

(4) S ohľadom na skutočnosť, že podklady získané úradom v priebehu prešetrovania naznačovali, že mohlo dôjsť k porušeniu zákona, úrad začal dňa 29.09.2014 v súlade s ustanovením § 25 ods. 1 zákona konanie č. 0021/OKT/2014 vo veci novej dohody obmedzujúcej súťaž podľa § 4 ods. 1 v spojení s § 4 ods. 4 písm. f) zákona a čl. 101 Zmluvy voči účastníkom konania PKB invest, Chemkostav a PRO-TENDER.¹³

Figure II: Date of initiation of administrative proceeding

ROZHODNUTIE

Číslo: 2021/KOH/SKO/3/56

Bratislava 2. novembra 2021

Protimonopolný úrad Slovenskej republiky, odbor koncentrácií, v správnom konaní SK/0048/OK/2021 začatom dňa 18.10.2021 na základe oznámenia koncentrácie podľa

Figure III: Date of issuing decision

AUTOMAX PLUS, s.r.o., Sládkovičova 127/632, 017 01 Považská Bystrica, IČO:46 569 022 (ďalej aj ako „AUTOMAX PLUS“), zastúpený URBAN STEINECKER GAŠPEREC BOŠANSKÝ, s.r.o., advokátska kancelária, Havlíčkova 16, 811 04 Bratislava, IČO: 47 244 895

proti rozhodnutiu Protimonopolného úradu Slovenskej republiky, odboru kartelov č. 2020/DOH/POK/1/2 zo dňa 3.2.2020, rozhodla tak, že:

m e n í

Figure IV: Number of decisions reviewed by the Office's appeals council

In some cases, it was necessary to standardize and unify the search results for appropriate use in the final structured database. The wording of statements in the decisions reviewed by the Office's appeal council could have differed in case of quashing of the first instance decision; therefore, it has been suggested to standardize the database values as shown in the table below.

Typ verdiktu v rozhodnutí	Navrhovaný Typ verdiktu, ktorý bude zapísaný do databázovej tabuľky
zrušuje rozhodnutie č. 2002/PO/2/1/098 zo dňa 23.05.2002	zrušenie rozhodnutia
zrušuje rozhodnutie č. 2002/ZK/2/1/065 zo dňa 16.04.2002 a vec vracia prvostupňovému orgánu na nové prejednanie a rozhodnutie	zrušenie rozhodnutia
zrušuje rozhodnutie č. 2002/ZK/2/1/250 a vec vracia prvostupňovému orgánu na nové prejednanie a rozhodnutie	zrušenie rozhodnutia
zrušuje rozhodnutie č. 2004/KV/1/1/127 a vec vracia na nové prejednanie a rozhodnutie	zrušenie rozhodnutia

Table I: standardized database

In the Proof-of-Concept project, the Authority focused on extracting 14 key metadata (attributes) from the decisions. Some of them were only applicable to antitrust decisions or, conversely, only to merger control decisions. A number of attributes had to be further broken down, *e.g.*, parties to the administrative proceedings. With the exception of identifying data, some specific information relates to a particular entity, such as the fine imposed, other sanctions (prohibition to participate in public procurement and its duration), and the application of specific legal institutes (leniency program, settlement).

Regarding an indicative quotation for the creation of such a tool that could be used for the above data extraction, an efficiency problem has emerged. The relatively small number of decisions of the Office, around 1350, and the potential cost of the tool would be disproportionately expensive compared to manually extracting the data into a structured database, even considering the error rate of both machine and manual approaches to data extraction.

The Authority, therefore, concludes that, for the specific reasons of the smaller number of objects processed and the language specification, the introduction of similar tools is questionable for smaller competition authorities.